

****04.05.2022****

****A New Sanction for Violation of GDPR****

The National Supervisory Authority has completed an investigation in April 2022 regarding the operator Concordia Capital IFN S.A. and found a violation of the provisions of Article 5 and Article 6 of the General Data Protection Regulation.

The operator Concordia Capital IFN S.A. was sanctioned with a fine amounting to 19,772.4 lei (equivalent to 4,000 EURO).

The sanction was applied following a complaint alleging that the operator installed audio-video cameras in its employees' offices in violation of the legal provisions regarding personal data protection. During the investigation initiated by the supervisory authority, the following were established:

- that the operator did not prove that the purpose invoked in its internal regulation (ensuring the protection of the employer's and employees' persons, goods, and values) is a justified one and that less intrusive means were used to achieve this purpose, which had not proven their effectiveness, prior to the adoption of the decision made in 2020 to use monitoring systems through electronic communication means and/or video surveillance at the workplace;
- that the operator did not present evidence regarding compliance with the processing principles regulated by Article 5 paragraph (1) letters a), b), c) and paragraph (2) and the legality conditions provided by Article 6 of the General Data Protection Regulation, which would allow Concordia Capital IFN S.A. to use video surveillance means inside the offices used by its employees and implicitly process in this manner the personal data of individuals who carry out their activities in these spaces;
- that the operator did not present evidence showing that it fulfilled all the conditions provided by Article 5 of Law no. 190/2018.

In this context, we specify that, in relation to Article 6 letter f) of the General Data Protection Regulation, the provisions of Article 5 of Law no. 190/2018 establish the following:

"Where monitoring systems are used through electronic communication means and/or through video surveillance means at the workplace, the processing of personal data of employees, for the purpose of achieving the legitimate interests pursued by the employer, is permitted only if:

- a) the legitimate interests pursued by the employer are properly justified and prevail over the interests or rights and freedoms of the data subjects;
- b) the employer has carried out the mandatory, complete, and explicit prior information of the employees;
- c) the employer has consulted the union or, as the case may be, the employee representatives before introducing the monitoring systems;
- d) other forms and less intrusive means to achieve the purpose pursued by the employer have not previously proven their effectiveness; and
- e) the duration of storage of personal data is proportional to the purpose of processing, but not more than 30 days, except in situations expressly regulated by law or in cases that are properly justified."

****Legal and Communication Directorate****

****A.N.S.P.D.C.P.****